

testator's real estate to raise monies which were applied for the purposes of the business was held to be within their powers.^{1]}

21. **Breaking up the testator's establishment.** — An *executor* is allowed a reasonable time for breaking up the testator's establishment, and a period of two months in one case was considered not to be excessive (*d*). Executors, as a general rule, do not pay legacies until the expiration of one year from the testator's death; but this is a rule of convenience; and, therefore, if the assets be clearly sufficient for payment of debts and legacies, there is nothing to prevent the executors from discharging the legacies before the expiration of the year (*e*).

22. **Appropriation.** — An executor may *appropriate* a legacy without the necessity of a suit, where the appropriation is such as the Court itself would have directed (*f*).

23. **Maintenance.** — A trustee may expend sums of money for the *protection and safety*, or *support*, of a *cestui que trust* who is incapable of taking care of himself, but the more prudent course is to apply to the Court (*g*).

* 24. **Out of interest.** — If a *legacy* be left to an [*582] infant, and the Court, upon application, would, from the inability of the parent to support his child, order *maintenance* out of the *interest*, the trustee, should he make advances for that purpose without suit, would be allowed them in his account (*a*). In the case of *Andrews v. Partington* (*b*), Lord Thurlow refused to indemnify the trustee; but the authority of that decision has been repeatedly denied, and may be considered as overruled (*c*). And the maintenance

(*d*) *Field v. Peckett* (No. 3), 29 Beav. 576.

(*e*) *Angerstein v. Martin*, 1 T. & R. 241, *per* Lord Eldon; *Pearson v. Pearson*, 1 Sch. & Lef. 12, *per* Lord Redesdale; and see *Garthshore v. Chalie*, 10 Ves. 13.

(*f*) *Hutcheson v. Hammond*, 3 B. C. C. 128, see 145, 148; and see *Cooper v. Douglas*, 2 B. C. C. 231.

(*g*) *Duncombe v. Nelson*, 9 Beav. 211; and see *Chester v. Rolfe*, 4 De G. M. & G. 798, and cases there cited.

(*a*) *Sisson v. Shaw*, 9 Ves. 285; *Prince v. Hinc*, 26 Beav. 634.

(*b*) 3 B. C. C. 60.

(*c*) See *Sisson v. Shaw*, 9 Ves. 288; *Maberly v. Turton*, 14 Ves. 499; *Lee v. Brown*, 4 Ves. 369; *Ex parte Darlington*, 1 B. & B. 241; *Cotham v. West*, 1 Beav. 381.

¹ *Re Dimmock*, 52 L. T. N. S. 494.